

**JUSTIFICATION REVIEW DOCUMENT
FAR PART 6 FOR OTHER THAN FULL AND OPEN COMPETITION
WEAPON SYSTEM: UH-60 Black Hawk**

Program/Equipment: Aviation and Missile Command (AMCOM) Logistics Center (ALC) requirement for overhaul/upgrade of the Multi-Functional Display Unit in support of the UH-60 Weapon System.

Authority: Title 10 United States Code Section 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2), "Only one responsible source and no other supplies or services will satisfy agency requirements."

Amount: \$89,242,560.00

Prepared by:

Typed Name: _____
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Date: _____

Contracting Officer:

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Technical Representative:

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Date: _____

Requirements Representative:

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Title: Chief, Acquisition Planning Division
E-Mail: _____

DSN: N/A
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Reviews: I have reviewed this justification and find it adequate to support other than full and open competition.

Program Manager:

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Signature: [Redacted] Date: [Redacted]

Legal Counsel:

Typed Name: [Redacted] DSN: [Redacted]
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Command Advocate for Competition:

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**FAR PART 6 JUSTIFICATION AND APPROVAL
FOR OTHER THAN FULL AND OPEN COMPETITION
WEAPON SYSTEM: UH-60 Black Hawk**

1. **Contracting Activity:** Army Contracting Command – Redstone Arsenal (ACC-RSA), ATTN: CCAM-ALB, Redstone Arsenal, AL 35898-5000.

2. **Description of Action:** The Aviation and Missile Command (AMCOM) Logistics Center (ALC) requests approval to award a sole source procurement for overhauling/upgrading the Multi-Functional Display Unit in support of the UH-60 Weapon System. The resulting contract will be a single-award, firm-fixed price, five-year Indefinite Delivery Indefinite Quantity (IDIQ) overhaul/upgrade contract to the following contractor:

ROCKWELL COLLINS, INC., CAGE Code [REDACTED]; UEI: [REDACTED]; 400 Collins Rd NE Cedar Rapids, IA 52498; Large Business

The minimum quantity is [REDACTED] with a maximum quantity of [REDACTED] which includes a maximum of [REDACTED] for Foreign Military Sales (FMS). United States (US) quantities will utilize Army Working Capital Funds. FMS quantities will utilize FMS funding, but this requirement is not source directed. The potential FMS customers include Egypt, Bahrain, Korea, Netherlands, Kuwait, and Greece. At this time, the applicable FMS Case numbers are unknown.

3. **Description of Supplies/Services:** ALC has a requirement to provide the overhaul/upgrade of the Multi-Functional Display Unit. The contractor shall furnish all services, facilities, labor, parts, materials, equipment, tools, and data necessary to complete the inspection and overhaul/upgrade. The following information is provided for the Multi-Functional Display Unit:

Procurement Request Identification:	BB852
Procurement Request Order Number:	AX4M3003AX
System:	UH-60
Noun:	Multi-Functional Display Unit
Input National Stock Numbers (NSNs):	7025-01-558-4785 7025-01-617-2005
Input Part Numbers (P/Ns):	70600-01826-102 822-3029-001
Output NSN:	7025-01-617-2005
Output P/N:	822-3029-001
Critical Safety Item (CSI):	No

Estimated Quantity Range: [REDACTED] Minimum/[REDACTED] Maximum (w/ [REDACTED] FMS)
Estimated Base Year Quantity Value: [REDACTED]
Estimated Out-Years (two-five) Value: [REDACTED]

Total Estimated Dollars: \$89,242,560.00
Contract Type: 5-year IDIQ

The estimated US requirement quantity is [REDACTED] for the base year at an estimated value of [REDACTED] and the out-years (two through five) estimated value, including FMS requirements, is [REDACTED]. The total estimated dollar value of the proposed procurement, including FMS dollars, is [REDACTED]. The independent Government estimate bearing this total was approved on 29 January 2024. This calculation is based on utilizing the Maintenance Expenditure Limit (MEL) of [REDACTED] each, multiplied by the maximum quantity of [REDACTED]. The MEL can be found in the Independent Government Estimate. The Current Replacement Cost is [REDACTED] and 65 percent of the Replacement Cost is [REDACTED]. This total includes a combined quantity of [REDACTED] FMS requirements. The FMS requirements are not source directed. This contract will expire five years after contract award.

The US and FMS requirements are as follows:

US	Quantity	Unit Price	Total Price
Base Year	[REDACTED]	[REDACTED]	[REDACTED]
Year 2	[REDACTED]	[REDACTED]	[REDACTED]
Year 3	[REDACTED]	[REDACTED]	[REDACTED]
Year 4	[REDACTED]	[REDACTED]	[REDACTED]
Year 5	[REDACTED]	[REDACTED]	[REDACTED]
Total	[REDACTED]	[REDACTED]	[REDACTED]

FMS	Quantity	Unit Price	Total Price
Base Year	[REDACTED]	[REDACTED]	[REDACTED]
Year 2	[REDACTED]	[REDACTED]	[REDACTED]
Year 3	[REDACTED]	[REDACTED]	[REDACTED]
Year 4	[REDACTED]	[REDACTED]	[REDACTED]
Year 5	[REDACTED]	[REDACTED]	[REDACTED]
Total	[REDACTED]	[REDACTED]	[REDACTED]

4. **Authority Cited:** Title10 United States Code Section 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2), "Only one responsible source and no other supplies or services will satisfy agency requirements."

5. **Reason for Authority Cited:** The applicable authority is Federal Acquisition Regulation 6.302-1(a)(2), "Only one responsible source and no other supplies or services will satisfy agency requirements." The proposed acquisition requires the use of the cited statutory authority because technical data, to include a Depot Maintenance Work Requirement (DMWR), is not available to the Government for the Multi-Functional Display Unit overhaul/upgrade requirement. The Government does not have the necessary access to the technical data needed to compete the overhaul/upgrade

[REDACTED]

requirement. All the technical data for this requirement is proprietary and owned by Rockwell Collins, Inc. [REDACTED]

[REDACTED] Rockwell Collins, Inc. also confirmed that no other companies had access to this data. Overhaul/upgrade of the Multi-Functional Display Unit requires the use of proprietary data and parts. Rockwell Collins, Inc. owns the technical data and necessary parts and has not licensed the data or made parts available to the Government in a manner that would allow for full and open competition. At this time, no other sources have access to, or have the authority to use the technical data package for this overhaul/upgrade requirement; therefore, no other sources can compete for this award. In addition, this component is necessary for the UH-60 Black Hawk to function correctly, and no alternatives are available; accordingly, no other supply or service will satisfy the Government's need. This situation resembles the illustrative example provided in FAR 6.302-1(b)(2), where the FAR suggests that when the lack of necessary data rights and materials results in the required supplies or services being available from only one source, the use of this authority would be appropriate. Should a new source acquire the proprietary data and the ability to obtain parts from Rockwell Collins, Inc. during the contract period of performance, the new source can compete in future procurements.

6. Efforts to Obtain Competition: In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) 205.205-71, DFARS 206.302-1(d), and DFARS Procedures, Guidance, and Information (PGI) 206.302-1(d), a Sources Sought announcement was publicized on SAM.gov on 9 June 2023 and closed on 22 June 2023. Only two vendors responded: [REDACTED]

[REDACTED] and [REDACTED]. In their responses, neither of these two businesses provided evidence that they have access to the Rockwell Collins proprietary data, drawings, specifications, or parts necessary to perform the work required by this acquisition. [REDACTED]

[REDACTED] Additionally, Rockwell Collins confirmed that no other company has access to the data. Because Rockwell Collins owns and controls the data and the proprietary parts required to perform the work for this acquisition, Rockwell is the only source capable of performing the work, and there are no steps the Government can take to increase competition at this time. This acquisition will be synopsisized in SAM.gov on or about 14 February 2024. Any additional sources identified through the synopsis procedure will receive due consideration as prescribed by law.

Subcontracting Competition: In accordance with FAR 19.702 and FAR 19.704, a Subcontracting Plan is required for large businesses on acquisitions that exceed \$750K. According to FAR 19.704, the contractor must include FAR 52.219-8, entitled "Utilization of Small Business Concerns," in all subcontracts that offer further subcontracting opportunities and shall require all subcontractors, except small businesses, that receive subcontracts in excess of \$750K to adopt a plan that complies with the requirements of the clause at FAR 52.219-9, "Small Business Subcontracting Plan." Per FAR 44.204(c), the solicitation and resulting contract will include the FAR clause 52.244-5, entitled

[REDACTED]

“Competition in Subcontracting” and DFARS clause 252.219-7003, entitled “Small Business Subcontracting Plan (DoD Contracts)” to ensure that all subcontracts are awarded on a competitive basis to the maximum extent possible.

7. Actions to Increase Competition: Pursuant to DFARS PGI 206.303-2, the J&A supporting the previous contract for this requirement (W58RGZ-17-R-0051) is attached as Attachment 0001. Section 6 of the previous J&A indicated that the item had been published in Competition Advocate’s Shopping List [a website that no longer exists] and would be synopsisized in the Federal Business Opportunities website. Section 7 of the previous J&A indicated that other sources would be given consideration if they passed the source approval request process. Any vendors identified through these efforts would be given due consideration. To date, no other sources have been identified or have completed the source approval process. As stated previously in paragraph five, technical data is not available to support full and open competition, and no adequate DMWR is available for the overhaul/upgrade of the Multi-Functional Display Unit. As stated above in paragraph five, overhaul/upgrade of the Multi-Functional Display Unit requires the use of proprietary data and parts. Rockwell Collins, Inc. owns the technical data and necessary parts and has not licensed the data or made parts available to the Government in a manner that would allow for full and open competition. As a result, there are currently no actions that the Government can take to increase competition for the required overhaul/upgrade supplies, and the Government does not anticipate being able to compete these supplies in the future.

8. Market research Report/Commerciality Determination Report (MRR/CD): In accordance with FAR 10.002(b) meaningful market research for AX4M3003AX was conducted by the Inventory Management Specialist, AMCOM Logistics Center, in the last 18 months (with specific dates for each step listed below). Research methods included the following: (a) Personal knowledge in procuring supplies/services of this type; (b) Contacting knowledgeable persons in government during September 2022 (to include an Inventory Management Specialist); (c) Publication of a formal request for information in the form of a sources sought notice issued on 9 June 2023 (d) Review of Government and/or commercial databases for relevant information during September 2022 (Interactive Configuration Management and Procurement Program (ICAPP), Logistics Modernization Program (LMP), Federal Logistics Data on Mobile Media (FEDLOG), ARISE database in September 2022.

The source revealed from a search of those databases is Rockwell Collins, Inc. As previously noted, the sources sought notice was published on 9 June 2023 and closed on 22 June 2023. Two sources expressed interest: [REDACTED]

and [REDACTED]

[REDACTED]. In their responses, neither of these two businesses provided evidence that they have access to the Rockwell Collins proprietary data, drawings, specifications and parts necessary to perform the work required by this acquisition. [REDACTED]

[REDACTED]

Additionally, Rockwell Collins confirmed that no other company has access to the data. Based upon this market research, it has been determined that the Government's needs can be satisfied with commercial products or services, commercial products or services with customary or reasonable modification, or non- developmental items. Based upon the above, the basic clauses and provisions prescribed in FAR Part 12 are sufficient for use in this acquisition and will be utilized. As determined by the market research, the only capable source authorized to perform the required overhaul/upgrade is Rockwell Collins, Inc.

9. **Interested Sources:** The results of the Sources Sought announcement are addressed in paragraph six (6) of this document. There is a reasonable basis to conclude at this time, that the agency's minimum needs can only be satisfied by the original equipment manufacturer, Rockwell Collins, Inc. All notices required by FAR 5.201(b)(1)(i) will be published, and any proposal received shall be considered.

10. Other Facts:

a. Procurement history:

(1) The overhaul/upgrade history for NSN 7025-01-617-2005 is as follows:

Contract No.	DO	Eff. Date	Qty	Unit Price	Contractor
W58RGZ19D0083	W58RGZ23F0095	11/16/2022			Rockwell Collins, Inc.
W58RGZ19D0083	W58RGZ22F0183	05/19/2022			Rockwell Collins, Inc.
W58RGZ19D0083	W58RGZ20F0325	03/26/2020			Rockwell Collins, Inc.
W58RGZ19D0083	W58RGZ19F0420	06/04/2019			Rockwell Collins, Inc.

(2) The above acquisition was a sole-source acquisition.

(3) The Authority cited for the above procurement history is Title 10 United States Code (U.S.C.) Section 3204(a)(1) as implemented by paragraph 6.302-1(a)(2) of the FAR entitled, "Only one or a limited number of responsible sources and no other supplies or services will satisfy agency requirements."

(4) No prior contracts were competed using full and open competition.

(5) No unusual patterns have been revealed by the history of this action.

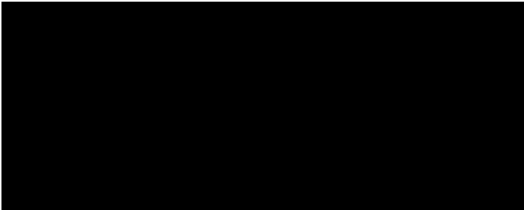
(6) There have been no changes since the previous procurement.



Approval

Based on the foregoing justification, I hereby approve the procurement of supplies for the overhaul/upgrade of the Multi-Functional Display Unit for the UH-60 aircraft in the amount of \$89,242,560.00 on an other than full and open competition basis pursuant to the authority of 10 United States Code Section 3204(a)(1) as implemented in Federal Acquisition Regulation 6.302-1(a)(2), Only one responsible source and no other supplies or services will satisfy agency requirements, subject to availability of funds, and provided that the services and property herein described have otherwise been authorized for this acquisition.

Date:  _____

Signature: 

Enclosure:

1 – Previous Approved J&A W58RGZ-17-R-0151